

23SMCV04695 23SMCV04695

County: los-angeles

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TENTATIVE RULING

Defendants/Cross-Complainants Skatie Noyes, Edward Hutchinson, and Chenault LLC's Motion for Judgment on the Pleading is GRANTED with thirty (30) days leave to amend as to the first and second causes of action and GRANTED without leave to amend as to the third cause of action.

Plaintiff/Cross-Defendant Eric Falcon dba Falcon Construction may amend his complaint only as authorized by the Court's order and may not amend the complaint to add a new party or cause of action without having obtained permission to do so. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.)

Defendants/Cross-Complainants Skatie Noyes, Edward Hutchinson, and Chenault LLC to give notice.

Analysis

Defendants move for judgment on the pleadings as to Plaintiff's claims because the address alleged in the First Amended Complaint ("FAC") is not the same property address provided in the contract upon which Plaintiff is suing, and Plaintiff cannot succeed on a claim to foreclose on a mechanic's lien because the lien is not recorded on the correct property address.

As to the claims for breach of contract and common counts, which both allege that Plaintiff performed work at 1175 Chenault Street (FAC ¶¶ 7, 11), the contract attached to the FAC indicates that the work was performed at 11795 Chenault Street (FAC ¶ 7, Ex. A). While this is typographical error, and the contract controls (see Schermer v. Tatum (2016) 245 Cal.App.4th 912, 922-923 [when allegations of complaint are inconsistent with facts evident from exhibits attached to the pleadings, pleading controls]), the Court requires amendment to these claims to make the address clear. Accordingly, Defendants' motion for judgment on the pleadings is GRANTED with thirty (30) days leave to amend as to the first and second causes of action.

As to the third cause of action, the elements to foreclose on a mechanic's lien include (1) the party seeking to foreclose furnished labor, service, and materials in a work of improvement, (2) the work was performed at the request of the owner or authorized by a direct contractor, if the party is a subcontractor, (3) a claim of lien is recorded after the claimant ceases to provide work and within 90 days after completion of work, (4) in an amount of the lesser of the reasonable value of the services provided or the contract price, and (5) a civil action to foreclose was commenced prior to 90 days after the claim of lien was filed. (Civ. Code, § 8400, et seq.; Basic Modular Facilities, Inc. v. Ehsanipour (1999) 70 Cal.App.4th 1480, 1485.)

The mechanic's lien attached to the complaint shows that the lien was recorded as to 1175 Chenault Street. (FAC ¶ 17, Ex. B.) Plaintiff declined to give any other sort of description of the land except to identify the owners, repeat the same wrong address, and identify the address as "Chenault Residence." (Ibid.) The request for judicial notice shows that a second mechanic's lien was recorded on November 13, 2023, but that lien is not the subject of the claim in the FAC. (See FAC ¶ 17.) That lien states that the balance came due on July 18, 2023, and it is clear that any filing of a lien on November 13, 2023 was beyond the 90-day deadline. Plaintiff argues that the completion date is a disputed factual question, but Plaintiff has conceded that this was the completion date by stating as much in the mechanic's lien. Thus, it is not clear how any claim to foreclose on this mechanic's lien could succeed if the Court were to grant Plaintiff leave to amend the claim. For that reason, Defendants' motion for judgment on the pleadings is GRANTED without leave to amend as to the third cause of action.